



SERVICE AGREEMENT

This **Service Agreement** (the "Agreement") is made and entered into as of 08-22-2025 (the "Effective Date") by and between:

BookCraft Publishers, a company registered (**Incorporation Number 805711782**) under the laws of Texas, USA, having its principal office at 12828 Willow Centre Dr Ste D # 225, Houston, Texas, USA 77066, Phone: 888 905 0868, and Email: info@bookcraftpublishers.com (hereinafter individually referred to as "BookCraft"); and

frontSale Moez Ahmed Attari, Phone: (123) 456-7892, Email: moez.ahmed@trusoft.pk, and a resident of 188-D, P.E.C.H.S Block 2, Karachi, Sindh, Pakistan (hereinafter referred to individually as the "Client").

BookCraft and the Client shall collectively be referred to as the "Parties."

1. SCOPE OF AGREEMENT

1.1 Purpose

This Agreement outlines the engagement between **BookCraft** and the **Client** for specific professional book-related services as specified in Clause 1.2 below. The Client acknowledges that BookCraft is an independent service provider and not a traditional publisher, meaning the Client retains ownership of their book and is responsible for making all final decisions regarding their project.

1.2 Customizable Service Offerings

The Client has selected the following service(s) offered by BookCraft:

1.2.1 Author Website Development

- **Custom Website Design** – Professional website creation tailored for authors and books, incorporating branding, user-friendly navigation, and responsive design.
- **Domain Registration** – Securing a relevant and personalized domain name for the author, registered under their ownership.
- **One Year Hosting** – Reliable and secure website hosting services for one full year.
- **SEO Optimization** – Ensuring the website is discoverable on search engines through keyword-rich content, meta-tagging, structured data, and performance enhancements to attract and engage readers.

1.3 Service Provider's Responsibilities

BookCraft agrees to:

- Deliver all selected services in accordance with industry standards and agreed timelines.
- Communicate regular updates regarding project milestones, approvals, and revisions.
- Ensure data security and confidentiality for all materials provided by the Client.
- Provide professional expertise and guidance to help clients achieve their publishing goals.

1.4 Client's Responsibilities

The Client agrees to:

- Provide all required materials (manuscript, images, descriptions, approvals) in a timely manner.
- Be responsive and available for necessary feedback, approvals, and communication.
- Be aware that revisions exceeding the agreed-upon limits may incur additional costs.
- Acknowledge that BookCraft does not guarantee book sales, rankings, or reader engagement, as success depends on various external factors.

1.5 Modifications to Scope

- 1.5.1 The Client may request additional services or modifications to the originally selected services, subject to approval by BookCraft.
- 1.5.2 If modifications require significant additional effort or time, BookCraft reserves the right to adjust project timelines and fees accordingly.

1.6 Acceptance of Deliverables

- 1.6.1 The Client shall review all deliverables within seven (7) business days of receipt and either approve them or submit revision requests.
- 1.6.2 The deliverables will be deemed accepted if no revisions are requested within the specified period.
- 1.6.3 The Client acknowledges that excessive or unreasonable revision requests may incur additional charges.

2. TERM AND TERMINATION

2.1 Term of Agreement

- 2.1.1 This Agreement commences on the Effective Date. It shall remain in effect until all services are completed unless terminated earlier in accordance with this Agreement.
- 2.1.2 For multi-phase projects (e.g., editing followed by publishing and marketing), the term may be extended based on project timelines, milestones, and client approvals.
- 2.1.3 If the Client engages BookCraft for ongoing marketing or distribution services, this Agreement shall remain in effect until either party provides written notice of termination in accordance with the conditions set forth below.

2.2 Service Milestones & Completion Timeframes

- 2.2.1 The estimated duration for completing the services shall be defined based on the selected services.
- 2.2.2 Delays due to late Client responses, incomplete materials, or additional revision requests may impact the timeline. BookCraft shall not be liable for such delays.

2.3 Termination by Either Party

Either party may terminate this Agreement prior to project completion under the following conditions:

2.3.1 Termination for Convenience

- Either the Client or BookCraft may terminate this Agreement for any reason by providing fourteen (14) days' written notice.
- If termination occurs before the completion of services, the Client shall compensate BookCraft for all work completed or rendered up to the termination date and any non-refundable expenses incurred on behalf of the Client.
- For marketing and promotion contracts or recurring services, a 30-day notice period is required before cancellation.

2.3.2 Termination for Material Breach

If either party breaches a material term of this Agreement and fails to remedy such breach within seven (7) days after receiving a written notice of default, the non-breaching party may terminate this Agreement immediately.

2.3.3 A material breach includes but is not limited to:

- Failure to make payments.
- Failure to deliver required materials (manuscript, approvals) within agreed timelines.
- Unauthorized use or disclosure of confidential information.
- Refusal to comply with intellectual property and copyright obligations.

2.4 Effect of Termination

Upon termination, the following obligations shall apply:

2.4.1 Payment Obligations

- The Client shall pay for all services rendered up to the termination date, including any non-refundable deposits or expenses incurred.
- If termination occurs after partial completion of work, the Client shall not be entitled to a refund for services already provided.

2.4.2 Transfer of Work Completed:

- The Client shall receive all work completed up to the termination date, provided that all outstanding balances are settled.
- If full payment is not received, BookCraft retains the right to withhold deliverables until payment is made.

2.4.3 Return of Client Materials:

- BookCraft shall return any original Client-provided materials upon request.
- Digital files will be retained thirty (30) days after termination, after which they may be deleted from BookCraft's systems.

2.4.4 Survival of Certain Clauses:

- The confidentiality obligations under Clause 5 (Confidentiality & Data Protection) shall remain in effect even after termination.
- Any intellectual property rights granted under Clause 4 (Intellectual Property Rights) shall survive in accordance with this Agreement.
- The Client shall remain responsible for any outstanding payments due under the Contract.

2.5 BookCraft's Right to Termination for Non-Payment or Uncooperative Conduct

2.5.1 Non-Payment Termination:

- If the Client fails to make a scheduled payment within seven (7) days of the due date, BookCraft reserves the right to suspend or terminate services until payment is received.
- If the Client remains nonresponsive regarding overdue payments, BookCraft may escalate collection efforts, including using a collection agency or taking legal action.

2.5.2 Uncooperative or Abusive Conduct:

- BookCraft reserves the right to terminate this Agreement immediately if the Client engages in abusive, harassing, or unprofessional conduct toward BookCraft's staff. This includes but is not limited to:
 - Inappropriate or offensive language.
 - Repeated failure to provide necessary information.
 - Unreasonable or excessive revision requests that exceed agreed-upon limits.
- No refunds shall be issued in such cases, and the Client shall remain liable for all work, whether completed or partially rendered.

2.6 Effect of Termination on Book Publishing & Distribution

For Clients utilizing publishing or distribution services, termination will not impact the availability of their book(s) in online marketplaces:

- If BookCraft was responsible for eBook distribution or print-on-demand setup, the Client may not need to re-register with retailers (e.g., Amazon KDP, IngramSpark, Apple Books) if the service is discontinued.
- The Client may request a handover of distribution accounts, where applicable; however, BookCraft will not be responsible for re-establishing the book on new platforms.

2.7 Force Majeure & Unforeseen Circumstances

2.7.1 Neither party shall be held liable for delays or termination due to events beyond their control, including but not limited to:

- Natural disasters (such as floods, earthquakes, and pandemics).
- Government actions or regulatory changes.
- Cybersecurity attacks, system failures, or major technical issues.
- Labor strikes, supply chain disruptions, or publisher shutdowns.

- 2.7.2 In the event of force majeure, both parties shall make reasonable efforts to resume performance as soon as feasible or agree to a mutually acceptable resolution.

2.8 Renewal & Continuation of Services

- 2.8.1 For ongoing marketing, distribution, or consultation services, the Agreement shall be automatically renewed for an additional one-month period unless terminated by either party with written notice at least seven (7) days prior to the end of the current term.
- 2.8.2 BookCraft reserves the right to revise service pricing and terms upon renewal, subject to the Client's approval.

2.9 Reinstatement of Terminated Services

If the Client wishes to re-engage BookCraft after termination, they must submit a written request, and the reinstatement shall be subject to:

- A reinstatement fee of \$100 (if applicable).
- Payment of any outstanding balances before work resumes.
- New timelines and revised contract terms, if necessary.

3. FEES, PAYMENTS, AND REFUNDS

3.1 Service Fees and Pricing Structure

3.1.1 Customized Pricing Based on Services Selected

The Client agrees to pay BookCraft a total fee of USD 1,200 for the selected services.

3.2 Payment Terms and Schedule

3.2.1 Payment Schedule Based on Project Phases

The Client agrees to the following payment schedule:

- 100% of the total fee shall be paid upon signing this Agreement.

3.2.2 Invoicing Process

- Invoices shall be emailed to the Client's registered email address.
- All invoices must be paid within two (2) days of receipt.
- Payments shall be made via bank transfer, credit card, or other pre-approved payment methods.

3.2.3 Late Payment Penalties

- Any outstanding invoice beyond the due date shall accrue a monthly late fee of 1.5%.
- BookCraft reserves the right to suspend work until all outstanding payments are cleared.
- Failure to pay within seven (7) days may result in termination of the contract, as outlined in Clause 2.

3.3 Non-Refundable Deposits and Fees

3.3.1 Non-Refundable Deposit

To secure the Client's spot in BookCraft's publishing schedule, an initial deposit of 100% is required at the time of contract signing. This deposit is non-refundable except in cases of default by BookCraft.

3.3.2 Non-Refundable Service Fees

The following services are non-refundable once initiated or completed:

- Editing and Proofreading Services
- Cover Design and Formatting Services
- Marketing and Advertising Services
- Print-on-Demand Setup and eBook Conversion

3.4 Refund Policy

3.4.1 Eligibility for Refunds

Refunds shall only be granted under the following conditions:

- **Non-Performance by BookCraft** – If BookCraft fails to deliver services within the agreed-upon timeline without providing valid justification.
- **Client's Withdrawal Before Work Commences** – If the Client cancels the contract before any work has begun, a partial refund, excluding administrative fees, may be issued.
- **Mutual Agreement for Termination** – If both parties agree to terminate the contract under Clause 2.3, a pro-rata refund may be issued for uncompleted work.

3.4.2 Non-Refundable Situations

The Client shall not be entitled to a refund under the following circumstances:

- **Client-Initiated Cancellation After Work Begins** — No refund shall be issued once work has commenced.
- **Failure to Provide Necessary Materials** — If delays or project cancellations result from the Client's failure to provide required materials (e.g., manuscript, approvals), no refunds will be issued.
- **Dissatisfaction Based on Subjective Preferences** — Once deliverables are accepted or revised within agreed-upon limits, Refunds will not be granted based on personal preferences.
- **Marketing & Advertising Results** — Marketing services do not guarantee book sales or rankings, and refunds are not applicable based on marketing performance.

3.5 Additional Costs and Change Requests

3.5.1 Scope Changes & Additional Fees

- If the Client requests additional revisions, extra design concepts, or major changes beyond the agreed-upon scope, BookCraft may issue a Change Order with revised pricing.
- Additional services requested by the Client will be billed at BookCraft's standard rates.

3.5.2 Expedited Services & Rush Fees

- If the Client requires expedited services that deviate from the agreed-upon timeline, BookCraft may charge a 100% rush fee.
- Rush orders will be prioritized but may impact other ongoing projects.

3.6 Taxes and Transaction Fees

3.6.1 Taxes

Unless otherwise stated, the client is responsible for any applicable taxes, VAT, or sales tax in their jurisdiction. If BookCraft is required to collect taxes by the applicable laws, they will be included in the invoice.

3.6.2 Transaction Fees

The Client shall bear any banking fees, wire transfer fees, or third-party payment processing fees associated with their preferred payment method.

3.7 Discounts, Promotions, and Referral Programs

3.7.1 Promotional Discounts

- BookCraft may offer seasonal promotions or discounts on select services.
- Discounts do not apply to previously invoiced services and must be applied before contract signing.

3.7.2 Referral Rewards Program

Clients who refer new authors to BookCraft may receive discounted services or a cash incentive if the referred party successfully signs a contract.

3.8 Disputed Payments and Chargebacks

3.8.1 Dispute Resolution for Payments

- If the Client disputes any invoice due to errors or dissatisfaction with the service, they must provide written notice within seven (7) business days.
- Both parties agree to negotiate in good faith before escalating the dispute to mediation or arbitration.

3.8.2 Chargeback Fraud Protection

- The Client agrees not to initiate a chargeback through their bank or credit card provider without first attempting to resolve the issue with BookCraft.
- Unwarranted chargebacks shall result in immediate legal action, and the Client shall be liable for all associated recovery costs.

4. INTELLECTUAL PROPERTY RIGHTS

4.1 Ownership of Intellectual Property

4.1.1 Client's Ownership of Book Content

The Client retains complete and exclusive ownership of all intellectual property rights in the manuscript, including but not limited to:

- Original written content (manuscript, chapters, titles).
- Characters, settings, and plotlines in fiction writing.
- Concepts, ideas, and research in non-fiction writing.
- Any revisions or edits are provided by BookCraft once accepted.

4.1.2 Service Provider's Ownership of Pre-Existing Work

- BookCraft retains ownership of any pre-existing proprietary materials, templates, or tools used in publishing.
- If BookCraft licenses third-party assets (e.g., stock images, fonts, design elements), those remain subject to the respective licensor's terms.

4.2 Use of BookCraft's Work for Marketing

4.2.1 Portfolio Display Rights

- BookCraft may use excerpts, cover images, marketing materials, and testimonials for promotional purposes.
- If the Client does not consent to such use, they must submit a written request for exclusion.

4.2.2 Confidential or Ghostwritten Work

- If the Client hires BookCraft for ghostwriting, all rights to the content shall be transferred to the Client upon final payment, and BookCraft shall not claim authorship.
- Ghostwritten works shall not be disclosed as part of BookCraft's portfolio unless otherwise agreed.

4.3 Restrictions on Use and Modifications

4.3.1 Prohibited Uses

The Client agrees not to use any materials or content provided by BookCraft in a way that:

- Violates copyright laws or the rights of third parties.
- Includes defamatory, obscene, or unlawful content.
- Misrepresents BookCraft's involvement in the work.

4.4 Intellectual Property in Marketing & Promotion

4.4.1 Ownership of Marketing Content

- Any social media graphics, book trailers, or advertising materials created for the Client remain the exclusive property of the Client.
- The Client has the right to resell or repurpose marketing materials outside of the agreed scope.

4.4.2 Use of Influencer or Third-Party Content

- If BookCraft Publishers engages influencers, bloggers, or media partners for promotional purposes, the Client must comply with the respective content usage terms of these parties.
- The Client must obtain written consent before using influencer-generated content in advertisements.

4.5 Indemnification for Copyright Infringement

4.5.1 Client's Responsibility

The Client warrants that:

- They own all rights to their manuscript and materials.
- Their work does not infringe on copyright, trademarks, or intellectual property rights.
- Any third-party materials (quotes, images, lyrics) are properly credited or licensed.

4.5.2 Service Provider's Responsibility

BookCraft warrants that:

- All original work (cover designs, formatted books) is created in a lawful manner.
- Any stock images or third-party assets used are licensed correctly.
- BookCraft shall not be held liable if the Client submits plagiarized or infringing content.

4.6 Resolution of Intellectual Property Disputes

4.6.1 Copyright Disputes

If a dispute arises over ownership, licensing, or unauthorized use, the parties agree to:

- First attempt informal resolution through written communication.
- If unresolved, consider seeking mediation or arbitration before resorting to legal proceedings.
- Comply with any copyright takedown requests for infringing content.

4.6.2 Governing Law

This clause shall be interpreted in accordance with the intellectual property laws of the State of Texas, United States of America.

4.7 Survival of Intellectual Property Rights After Termination

4.7.1 Ongoing Usage Rights

- If the Agreement is terminated, all approved and paid-for materials remain the Client's property.
- The Client may not continue using unfinished or unpaid work.

4.7.2 Portfolio Retention for BookCraft

- BookCraft may retain copies of completed work for internal reference and record-keeping.
- If the Client requests the removal of their project from BookCraft's public portfolio, BookCraft will comply within two (2) days.

5. CONFIDENTIALITY AND DATA PROTECTION

5.1 Definition of Confidential Information

For this Agreement, "Confidential Information" includes, but is not limited to:

- Client's Manuscript & Creative Works – Any unpublished manuscripts, drafts, outlines, character descriptions, or book-related concepts provided by the Client.
- Business & Financial Information – Any details regarding project costs, payments, marketing strategies, sales projections, or financial records.
- Marketing and Distribution Strategies – Any plans for book launches, promotional campaigns, or advertising methods to be used by either party.
- Personal Data – Personal identifiable information (PII) such as names, addresses, phone numbers, emails, and payment details.
- Service Provider's Proprietary Information – Any processes, templates, workflows, software, or systems developed by BookCraft Publishers.
- Any Other Non-Public Information – Any information disclosed by either party that is not publicly available or designated as confidential.

5.2 Obligations of Confidentiality

5.2.1 Non-Disclosure and Non-Use

- Both parties agree not to disclose, share, or use the other party's Confidential Information for any purpose other than fulfilling the obligations under this Agreement.
- The receiving party shall not copy, reproduce, or distribute any Confidential Information without prior written consent.

5.2.2 Limited Access

- Confidential Information shall be shared only with employees, subcontractors, or third-party service providers on a strict need-to-know basis for the purpose of project execution.
- Any third party must sign a confidentiality agreement before accessing any Confidential Information.

5.2.3 Protection Against Unauthorized Use

- Each party shall implement reasonable security measures to protect Confidential Information from unauthorized access, loss, or theft.
- In the event of any breach or suspected breach of confidentiality, the affected party must notify the other party immediately and take corrective action.

5.3 Exceptions to Confidentiality Obligations

Confidentiality obligations shall not apply if the disclosed information:

- becomes publicly available through no fault of the receiving party.
- was already lawfully known to the receiving party before disclosure.
- is required to be disclosed by law, regulation, or court order, provided the disclosing party is notified in advance.
- is independently developed by the receiving party without access to the Confidential Information.

5.4 Data Protection and Privacy Compliance

5.4.1 Compliance with Data Protection Laws

Both parties agree to comply with all applicable data protection and privacy laws, including but not limited to:

- California Consumer Privacy Act (CCPA) (USA)
- Personal Data Protection Laws in the Client's Jurisdiction

5.4.2 Collection and Use of Personal Data

- Any personal data collected (e.g., the Client's name, contact details, payment information) shall be used solely for the purposes outlined in this Agreement.
- BookCraft Publishers shall not sell, share, or use the Client's personal data for marketing purposes without explicit consent.

5.4.3 Secure Data Storage and Transfer

- All confidential documents and manuscripts shall be stored on secure servers with restricted access.
- If digital file transfers are required, they shall be encrypted to prevent unauthorized interception.
- Upon project completion, BookCraft shall retain files for ninety (90) days unless the Client requests deletion.

5.5 Confidentiality of Marketing & Promotion Materials

5.5.1 Use of Client's Information in BookCraft's Portfolio

The Client agrees that BookCraft Publishers may display excerpts of completed work (e.g., cover designs, formatted book pages) in its portfolio, website, or social media unless the Client explicitly requests otherwise.

5.5.2 Confidentiality of Marketing Campaigns

- Any book marketing strategies, paid advertising campaigns, influencer partnerships, or sales performance data shall remain confidential.
- The Client agrees not to disclose the proprietary marketing techniques used by BookCraft to any third party, competitor, or external consultant.

5.6 Term and Duration of Confidentiality Obligations

5.6.1 Duration of Confidentiality

- The confidentiality obligations shall remain in effect for the entire duration of this Agreement and five (5) years after contract termination.
- Any confidential materials must be returned or destroyed at the disclosing party's request after termination.

5.6.2 Return or Destruction of Confidential Information

Upon termination of this Agreement, each party shall:

- Return all confidential materials in its possession.
- Permanently delete all digital copies of manuscripts, files, and emails containing Confidential Information.
- Certify in writing that all confidential materials have been properly handled.

5.7 Breach of Confidentiality and Remedies

5.7.1 Consequences of Breach

If either party violates the confidentiality obligations under this Agreement, the affected party shall be entitled to:

- Immediate injunctive relief (court order) to stop further disclosure.
- Monetary damages for financial losses caused by the breach.
- Termination of the contract without refund or further obligation.

5.7.2 Indemnification for Unauthorized Disclosure

The breaching party shall fully indemnify the other party against any claims, damages, or legal expenses resulting from unauthorized disclosure or misuse of Confidential Information.

5.8 Governing Law and Dispute Resolution

5.8.1 Jurisdiction

This confidentiality clause shall be governed by and interpreted in accordance with the laws of Texas, USA.

5.8.2 Dispute Resolution

- Any disputes arising from a breach of confidentiality shall first be attempted to be resolved through mediation.
- If mediation fails, the dispute shall be settled through arbitration in [Jurisdiction].

6. WARRANTIES AND REPRESENTATIONS

6.1 BookCraft's Warranties and Representations

BookCraft Publishers represents and warrants the following:

6.1.1 Authority and Legal Compliance

- BookCraft has full legal authority to enter into this Agreement and perform the services outlined in this Agreement.
- The services provided will comply with all applicable publishing laws, including but not limited to:
 - Copyright Laws (U.S. Copyright Act, Berne Convention, or applicable jurisdiction laws).
 - Intellectual Property Laws (including fair use guidelines and proper licensing of third-party content).
 - Data Protection & Privacy Laws (GDPR, CCPA, or applicable regulations for handling personal data).

6.1.2 Professional Standard of Services

- BookCraft agrees to perform services using commercially reasonable efforts, skill, and expertise.
- All services, including editing, formatting, design, marketing, and publishing, shall be carried out professionally and in accordance with industry best practices.
- BookCraft does not guarantee any specific sales, reader engagement, or book rankings, as publishing success depends on market conditions, audience reach, and promotional efforts.

6.1.3 Quality and Accuracy

- BookCraft ensures that all deliverables, including edited manuscripts, formatted books, and cover designs, will be free from intentional errors or defects.
- In the event of a quality-related issue, BookCraft shall offer reasonable revisions or corrections within the agreed revision limit.

6.1.4 Non-Infringement Warranty

- BookCraft warrants that all original work provided under this Agreement does not infringe upon any third party intellectual property rights.
- If any third-party assets (e.g., stock images, fonts, software) are used, BookCraft ensures that proper licenses have been obtained.

6.2 Client's Warranties and Representations

The Client represents and warrants the following:

6.2.1 Ownership of Submitted Materials

- The Client warrants that they own all intellectual property rights in their manuscript, content, or any materials submitted to BookCraft.
- If the Client provides third-party content (e.g., images, quotes, song lyrics), they warrant that they have obtained the necessary permissions or licenses for use.

6.2.2 Non-Infringement and Originality

- The Client affirms that the manuscript, ideas, and submitted content:
 - Do not infringe on any third-party copyrights, trademarks, or intellectual property rights.
 - Are free from plagiarism and do not contain any unauthorized reproductions of other works.
 - Do not contain defamatory, obscene, or illegal material that could result in legal liability.
- If any copyright infringement claims arise due to the Client's submission, the Client agrees to indemnify BookCraft as outlined in Clause 7 (Liability and Indemnification).

6.2.3 Authority to Publish and Distribute

- The Client affirms they have the legal right to publish and distribute the book under their name or brand.
- If co-authors or third parties have contributed to the manuscript, the Client warrants that they have obtained the necessary permissions from all involved parties.

6.2.4 Adherence to Timelines and Communication

- The Client agrees to provide all necessary materials, approvals, and responses within the agreed timeline to avoid project delays.
- The Client understands that failure to meet deadlines may impact project schedules, and BookCraft shall not be held responsible for such delays.

6.3 Limitations and Disclaimers

6.3.1 No Guarantee of Commercial Success

- BookCraft does not guarantee that the Client's book will achieve specific sales figures, bestseller rankings, or reader engagement.
- The effectiveness of marketing, promotion, and advertising campaigns depends on various external factors, including audience reception, competitive market trends, and Client involvement.

6.3.2 No Legal or Financial Advice

- BookCraft is not responsible for providing legal, tax, or financial advice regarding publishing, royalties, or intellectual property rights.
- The Client is encouraged to seek legal or professional consultation for any concerns regarding royalty agreements, publishing contracts, or copyright registrations.

6.3.3 Third-Party Platforms and Distribution Services

- If BookCraft assists in publishing through third-party platforms (e.g. Amazon KDP, IngramSpark, Apple Books), the Client understands that:
 - The terms and policies of these platforms apply, and BookCraft has no control over their actions.
 - The Client must comply with their content guidelines, pricing policies, and royalty structures.
 - BookCraft is not liable for changes in distribution policies, book removals, or delays caused by these platforms.

6.3.4 Client's Discretion Over Final Decisions

- The Client retains final decision-making authority over book edits, formatting, cover designs, and marketing campaigns.
- If the Client rejects professional recommendations or refuses suggested improvements, BookCraft shall not be held responsible for the book's outcome.

6.4 Remedies for Breach of Warranties

6.4.1 Correction of Errors

- If any errors, formatting issues, or defects are found in the delivered work, BookCraft shall correct them within the revision limit .

6.4.2 Limitation of Liability

- BookCraft's liability shall not exceed the total amount paid by the Client for the services rendered under this Agreement.
- BookCraft shall not be responsible for any:
 - Lost profits or missed business opportunities related to the book's performance.
 - Indirect, incidental, or consequential damages resulting from the publishing process.

6.4.3 Indemnification for Breach of Warranty

- If the Client fails to uphold their warranties (e.g., submits plagiarized content or provides misleading copyright claims), the Client shall be responsible for all legal consequences, claims, and costs incurred.
- BookCraft may terminate the Agreement immediately if the Client's warranties are found to be false or misleading.

6.5 Dispute Resolution for Warranty Claims

6.5.1 Informal Resolution

- If a dispute arises regarding the quality, accuracy, or delivery of services, both parties agree to attempt good-faith negotiations to resolve the matter first.

6.5.2 Mediation or Arbitration

- If disputes cannot be resolved informally, the parties agree to settle the matter through:
 - Mediation – A neutral third party facilitates resolution.
 - Arbitration – A binding decision made by an independent arbitrator, if agreed upon.

6.5.3 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, USA, and any legal disputes arising under or in connection with this Agreement shall be subject to the jurisdiction of the applicable courts within the State of Texas.

6.6 Survival of Warranties

- The warranties and representations in this clause shall survive the termination of this Agreement to the extent necessary to protect the rights of each party.
- If the Client continues using BookCraft's services, formatted files, or marketing materials beyond the termination date, the warranties and disclaimers still apply.

7. LIABILITY AND INDEMNIFICATION

7.1 Limitation of Liability

7.1.1 Scope of Liability

- BookCraft's liability shall not exceed the total amount paid by the Client for the specific services rendered under this Agreement.
- BookCraft shall not be liable for:
 - Lost profits, missed business opportunities, or unrealized sales projections.
 - Delays caused by third-party service providers (e.g., Amazon KDP, IngramSpark, Apple Books, PayPal).
 - Technological issues beyond BookCraft's control (e.g., website downtime, cyberattacks, data loss).

7.1.2 Exclusion of Consequential and Incidental Damages

- Neither party shall be liable for indirect, incidental, punitive, or consequential damages, including but not limited to:
 - Loss of revenue, reputation, goodwill, or business opportunities.
 - Emotional distress, reputational damage, or public relations issues related to publishing.
 - Marketing campaign results, as audience engagement and sales depend on external factors.

7.1.3 Client's Acceptance of Risks

- The Client understands publishing, marketing, and promotion do not guarantee book sales or commercial success.
- The Client assumes full responsibility for:
 - The accuracy and originality of their manuscript.
 - All content included in their book, including potential legal disputes arising from it.
 - Decisions regarding pricing, royalty structures, and distribution platforms.

7.2 Indemnification by the Client

The Client agrees to defend, indemnify, and hold harmless BookCraft Publishers, its employees, contractors, affiliates, and representatives from any claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of:

7.2.1 Intellectual Property Infringement

- The Client warrants that their book, materials, and submissions do not infringe upon any third party's copyrights, trademarks, or intellectual property rights.
- If a plagiarism claim or copyright infringement lawsuit is filed due to the Client's work, the Client shall fully indemnify BookCraft.

7.2.2 Defamation and Legal Content Issues

- The Client agrees that their manuscript does not contain defamatory, libelous, or illegal content.
- If any legal action is taken against the Client's book, the Client shall be solely responsible for:
 - Responding to claims or lawsuits.
 - Paying any legal fees or damages.
 - Removing or modifying content as required by law.

7.2.3 Breach of Agreement

- If the Client violates the terms of this Agreement (e.g., fails to make payments, misuses marketing materials, or breaches confidentiality obligations), they shall:
 - Compensate BookCraft for any resulting losses.
 - Cover all legal expenses incurred in enforcing the Agreement.

7.2.4 Misuse of BookCraft's Services or Reputation

- The Client agrees not to misrepresent their relationship with BookCraft Publishers or falsely claim endorsements.
- If the Client publishes false reviews, makes defamatory statements, or damages BookCraft's reputation, BookCraft reserves the right to pursue legal action.

7.3 Indemnification by BookCraft

BookCraft Publishers agrees to indemnify and hold harmless the Client from any claims, damages, losses, or liabilities resulting from:

7.3.1 Non-Performance or Breach of Contract

If BookCraft fails to deliver services as outlined herein, the Client shall be entitled to:

- A partial refund for incomplete services.
- Revisions or corrections within the agreed terms.

7.3.2 Third-Party Copyright Infringement

If BookCraft inadvertently uses unlicensed stock images, fonts, or design elements, they shall:

- Replace the infringing material at no additional cost to the Client.
- Cover legal expenses if the Client is sued due to BookCraft's mistake.

7.3.3 Service Disruptions

If BookCraft experiences unforeseen delays due to staffing issues, software malfunctions, or force majeure events, it shall:

- Provide timely communication about revised deadlines.
- Offer reasonable adjustments to service timelines where possible.

7.4 Force Majeure

7.4.1 Definition of Force Majeure

Neither party shall be held liable for failure to perform obligations under this Agreement if such failure results from:

- Natural disasters (earthquakes, floods, hurricanes, pandemics).
- Government regulations (trade bans, publishing restrictions, tax law changes).
- Cybersecurity incidents (data breaches, ransomware attacks, system failures).
- Labor strikes, power outages, or telecommunications failures.

7.4.2 Notice and Resolution

If a force majeure event occurs, the affected party shall:

- Notify the other party in writing within seven (7) days.
- Take reasonable steps to resume normal operations as soon as possible.
- If services cannot be resumed within 30 days, either party may terminate the Agreement without penalty.

7.5 Dispute Resolution for Liability and Indemnification Claims

7.5.1 Good Faith Negotiation

Both parties agree to first attempt to resolve any disputes related to liability or indemnification through good-faith discussions.

7.5.2 Mediation or Arbitration

If a resolution cannot be reached, the dispute shall be handled through:

- Mediation – A neutral third party facilitates the discussion.
- Binding Arbitration – An independent arbitrator makes a final and binding decision, provided that both parties agree.

7.5.3 Governing Law and Legal Jurisdiction

- This Agreement shall be governed by and construed in accordance with the laws of Texas, USA.
- Any legal action must be filed in the designated court or jurisdiction.

7.6 Survival of Liability and Indemnification Obligations

7.6.1 Post-Termination Obligations

Even after this Agreement ends, liability and indemnification obligations shall continue to apply for:

- Copyright disputes and intellectual property claims.
- Breach of confidentiality and misuse of trade secrets.
- Financial obligations (e.g., outstanding invoices, refund requests).

7.6.2 No Waiver of Legal Rights

If either party fails to enforce a provision in this Agreement, it does not waive its legal rights to enforce it later.

8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1 Governing Law

8.1.1 Applicable Law and Jurisdiction

- This Agreement shall be governed by and construed in accordance with the laws of Texas, USA, without regard to its conflict-of-law provisions.
- Any disputes arising from this Agreement shall be subject to the exclusive jurisdiction of the courts in Houston, Texas, USA unless otherwise agreed upon in writing.

8.1.2 Compliance with Laws and Regulations

Both parties agree to comply with all applicable local, national, and international laws governing:

- Publishing, copyright, and intellectual property laws.
- Advertising, marketing, and consumer protection laws.
- Data protection regulations such as GDPR (EU), CCPA (California), and other applicable privacy laws.
- Taxation and royalty distribution laws related to book sales and author earnings.

8.1.3 Cross-Border Transactions and International Clients

If the Client resides outside the governing jurisdiction, the Client acknowledges that:

- Legal proceedings may need to be conducted in the governing country's courts.
- Any applicable international treaties (e.g., the Berne Convention for copyright protection) may be considered in the event of disputes.
- The Client may be required to comply with tax laws and reporting obligations in their country of residence.

8.2 Dispute Resolution Process

8.2.1 Negotiation and Good Faith Resolution

- In the event of a dispute, both parties agree to attempt an informal resolution through good-faith negotiations before initiating any legal action.
- Either party may submit a written notice of dispute detailing:
 - The nature of the issue.
 - The steps taken to resolve it.
 - The proposed resolution.
- The parties shall have fourteen (14) days from the date of the written notice to resolve the dispute amicably.

8.2.2 Mediation

- If negotiations fail, the parties agree to participate in mediation conducted by a neutral third party before resorting to litigation.
- The mediation shall be held in Houston, Texas, USA, or at an agreed-upon location.
- The mediator's fees shall be split equally between the parties unless otherwise agreed.
- If mediation fails to resolve the dispute within fourteen (14) days, the parties may proceed to arbitration or litigation.

8.2.3 Binding Arbitration

- If both parties agree, disputes may be resolved through binding arbitration instead of court litigation.
- The arbitration shall be conducted in accordance with the rules of the AAA.
- The arbitrator's decision (s) shall be final and enforceable in any competent court.
- Arbitration costs shall be shared equally unless the arbitrator determines otherwise.

8.2.4 Litigation and Court Proceedings

- If mediation and arbitration fail, disputes may be resolved through litigation in the governing jurisdiction.
- The prevailing party in any litigation shall be entitled to recover reasonable legal fees, court costs, and expenses.

8.3 Confidentiality of Dispute Resolution

8.3.1 Protection of Confidential Information

- Any discussions, evidence, or documents exchanged during negotiation, mediation, or arbitration shall be considered confidential and not disclosed to third parties.
- In the event of court litigation, both parties agree to seek protective orders to limit the public disclosure of sensitive information.

8.4 Limitations on Claims and Actions

8.4.1 Timeframe for Filing a Claim

- Any claim or cause of action related to this Agreement must be filed within one (1) month from the date the issue arose.
- Failure to file within the timeframe shall waive the right to pursue legal action.

8.4.2 No Class Actions or Group Lawsuits

- Both parties agree that any disputes shall be resolved individually, without resorting to class action, group lawsuit, or collective claim proceedings.
- The Client waives any right to participate in a class action lawsuit against BookCraft.

8.5 Indemnification for Legal Disputes

8.5.1 Client's Indemnification Obligations

The Client agrees to indemnify and hold harmless BookCraft from any legal claims, damages, or liabilities resulting from:

- Unauthorized use of copyrighted materials (e.g., plagiarism, unauthorized use of images).
- Defamatory, false, or misleading content in the book.
- Breach of contract or failure to fulfill obligations.

8.5.2 Service Provider's Indemnification Obligations

BookCraft agrees to indemnify the Client for damages arising from:

- Breach of contract due to failure to deliver agreed-upon services.
- Unauthorized use of the Client's copyrighted work.
- Violation of third-party intellectual property rights by BookCraft.

8.6 Governing Language of the Agreement

- This Agreement shall be written and interpreted in English.
- If translated into another language, the English version shall prevail in case of any discrepancies.

9. ENTIRE AGREEMENT, AMENDMENTS, & ENFORCEABILITY

9.1 Scope and Binding Nature of the Agreement

9.1.1 Comprehensive Agreement

- This Agreement constitutes the complete and final agreement between the parties.
- It replaces and supersedes all prior discussions, representations, negotiations, proposals, written agreements, and verbal understandings, whether formal or informal.
- Both parties acknowledge that no external promises, assurances, or representations—other than those explicitly stated in this Agreement—are binding.

9.1.2 Legally Binding Effect

- By signing this Agreement, both parties confirm that they have fully understood and accepted all terms as outlined herein.
- This Agreement shall be legally binding upon and enforceable against:
 - The Service Provider and its successors, assigns, or legal representatives.
 - The Client, their heirs, successors, or authorized representatives.

9.1.3 No Reliance on External Representations

- Each party acknowledges that they have not relied upon any statements, representations, warranties, or promises made outside of this Agreement when entering into it.
- If any party misunderstood or misinterpreted any prior discussions, this Agreement shall take precedence over those prior communications.

9.2 Modification and Amendments

9.2.1 Formal Written Amendments Required

Any modifications, alterations, or amendments to this Agreement must:

- Be made in writing.
- Be signed by both parties to be legally valid.
- Clearly specify the revised terms and effective date of the change.

9.2.2 No Implied or Verbal Amendments

- Verbal agreements, emails, or informal exchanges shall not modify this Agreement unless documented in a signed written amendment.
- No Service Provider employee, contractor, or representative has the authority to modify this Agreement verbally.

9.2.3 Scope of Modifications

Amendments may include, but are not limited to:

- Changes to the Scope of Work (e.g., additional editing, formatting, or marketing services).
- Adjustments to payment terms or service pricing.
- Extensions or modifications to deadlines or delivery timelines.
- Revisions to confidentiality or intellectual property clauses if required.

9.3 Severability of Provisions

9.3.1 Handling of Invalid or Unenforceable Clauses

- If any provision of this Agreement is found to be invalid, illegal, or unenforceable under applicable law, the remaining provisions shall remain fully enforceable and unaffected.
- The parties agree to replace any invalid clause with a new provision that closely reflects the original intent while maintaining legal validity.

9.3.2 Preservation of Agreement Integrity

- The unenforceability of one section or clause does not affect the validity of the entire Agreement.
- If a court of law modifies or removes a clause, both parties shall work in good faith to amend the Agreement accordingly.

9.4 No Waiver of Rights

9.4.1 Non-Waiver of Enforcement Rights

- If either party fails to enforce any provision of this Agreement at any time, it shall not constitute a waiver of that provision or any future rights.
- The failure to take immediate legal action for a breach does not eliminate the right to take action in the future.

9.4.2 Written Waivers Only

- Any waiver of rights or obligations must be documented in writing and signed by the party waiving the rights or obligations.
- A written waiver shall only apply to the specific instance mentioned and shall not create a precedent for future waivers.

9.5 Assignment and Transfer of Agreement

9.5.1 Restrictions on Assignments

- The Client shall not assign, transfer, or delegate their rights or obligations under this Agreement to any other party without the prior written consent of the Service Provider.
- The Service Provider may assign or subcontract aspects of the work (e.g., hiring freelance editors, designers, or marketers) but remains responsible for delivering the agreed services.

9.5.2 Successors and Assigns

- This Agreement shall be binding upon and benefit both parties, their heirs, successors, and legal assigns.
- If the Service Provider undergoes a merger, acquisition, or business restructuring, this Agreement shall remain valid and enforceable.

9.6 Survival of Terms After Termination

9.6.1 Clauses That Remain in Effect

- Certain provisions of this Agreement shall remain enforceable even after the termination or completion of the services, including:
- Intellectual Property Rights (Clause 4).
 - Confidentiality and Non-Disclosure Obligations (Clause 5).
 - Liability and Indemnification (Clause 7).
 - Governing Law and Dispute Resolution (Clause 8).

9.6.2 Final Obligations After Termination

- Upon termination, the Client remains responsible for:
- Settling outstanding invoices.
 - Returning confidential materials or proprietary assets belonging to the Service Provider.
 - Ceasing any further use of licensed designs, marketing materials, or Service Provider property unless granted ongoing rights.

9.7 Headings and Interpretation

9.7.1 Use of Headings for Reference

- The section headings and subheadings in this Agreement are for reference purposes only and shall not affect the interpretation of the clauses.
- In the event of ambiguity, the entire clause shall be reviewed in full to determine its intended meaning.

9.7.2 Interpretation in Favor of Clarity

- Any disputes related to the interpretation of this Agreement shall be resolved in favor of:
- Ensuring fairness to both parties.
 - Preserving the original intent of the Agreement.
 - Minimizing unnecessary legal ambiguity.

9.8 Execution and Counterparts

9.8.1 Electronic and Digital Signatures

- This Agreement may be signed either physically or electronically via a legally recognized electronic signature platform (e.g., DocuSign, Adobe Sign).
- Digital signatures shall be deemed valid and enforceable in the same manner as handwritten signatures.

9.8.2 Signing in Counterparts

- This Agreement may be executed in multiple counterparts, each of which shall be considered an original; however, all of them together shall constitute one binding Agreement.

10. SIGNATURES & EXECUTION

By signing below, both Parties acknowledge that they have read, understood, and agreed to the terms and conditions outlined in this Agreement.

For BookCraft Publishers
Authorized Signatory: Robert Williams
Date: 08-22-2025



Client: Moez Ahmed Attari
Signature: _____
Date: _____